

The Union, its Territory and Citizenship - The Foundation Track

Chapter F1.2 — From Zero: What a Country's Territory Legally Is, How States Are Made and Unmade, and Who Counts as an Indian Citizen

Module	Foundation Layer — Module 1 — Indian Polity
Chapter	Chapter F1.2
Topic	Official syllabus head 3 — Indian Polity and Economy
Version	v1.0
Compiled	9 August 2026
Exam stage	Recruitment Test (RT)

NOTE · HOW TO USE THIS DOCUMENT

A short chapter by page count but a dense one by marks. It covers Articles 1 to 11 - the first eleven Articles of the Constitution - and they contain two things the exam returns to repeatedly: the machinery for creating, merging and renaming States, and the rules deciding who is an Indian citizen. Both are almost pure recall, which makes them cheap marks IF the distinctions are learned precisely. Two distinctions carry most of the weight: Union of India versus Territory of India, and Article 2 versus Article 3. Read Chapter F1.1 first - this chapter assumes you know what an Article is and how amendment works.

This is the FOUNDATION layer - it teaches from first principles. The COMPACT Chapter 1.2 covers the same ground in one third of the space and is your revision text for the final six weeks. Citizenship law is amended frequently; provisions here follow the Constitution and the Citizenship Act 1955 as amended, and items marked CONFIRM should be re-checked before the RT.

Table of Contents

0. What This Chapter Is For	3
1. Session 1 - What "Territory" Legally Means ★★★★★	4
1.1 Article 1, read slowly	4
1.2 The distinction that earns marks - Union of India versus Territory of India	4
1.3 The current count	4
2. Session 2 - How States Are Made, Merged, Renamed and Lost ★★★★★	6
2.1 Article 2 versus Article 3 - get this right and you have the topic	6
2.2 The Article 3 procedure - four steps, and two traps	6
2.3 Article 4 - the provision that explains why the map is not "the Constitution"	6
2.4 Berubari - the limit on Article 3	7
2.5 The reorganisation story - learn it as a narrative	7
3. Session 3 - Citizenship: The Constitutional Provisions ★★★★★	9
3.1 What citizenship actually is	9
3.2 Articles 5 to 11 - what each one does	10
4. Session 4 - The Citizenship Act, 1955 ★★★★★	12
4.1 The five modes of acquisition	12
4.2 Citizenship by birth - the three date bands	12
4.3 Citizenship by descent - born outside India	12
4.4 Registration, naturalisation and incorporation	13
4.5 The three modes of loss	13
4.6 Overseas Citizen of India, and the CAA	14
5. Graded Practice - 40 Questions ★★★★★	15
5.1 Level 1 - Recognition	15
5.2 Level 2 - Understanding	16
5.3 Level 3 - Recruitment Test standard	17
6. Answers and Explanations	19
6.1 Level 1	19
6.2 Level 2	19
6.3 Level 3	20
7. One-Minute Revision	21
8. Five-Minute Wall Sheet	21

0. What This Chapter Is For

Articles 1 to 11 look like housekeeping. They are actually two self-contained, high-yield recall topics, and beginners lose easy marks here because the distinctions are fine.

STUDY SESSION · CHAPTER F1.2 - THE FOUR SESSIONS

- 1 **Session 1** - What territory legally means, and the two lists that are not the same thing (Section 1)
- 2 **Session 2** - How States are created, merged, renamed and lost (Section 2), including the reorganisation story
- 3 **Session 3** - Citizenship: what it is, and the constitutional provisions (Section 3)
- 4 **Session 4** - The Citizenship Act 1955 - acquisition, loss, OCI and the CAA (Section 4)

Then **40 graded questions** in Section 5. Budget five sessions in total, so about **two and a half days** at two hours a day.

WHY THIS EXISTS · WHY AN APFC CANDIDATE SHOULD CARE ABOUT ARTICLES 1 TO 11

Two reasons beyond the marks.

First, jurisdiction. Every labour and social security statute you will administer applies to a defined **territory**. The EPF & MP Act extends to the whole of India. When a Union Territory is created or a State is reorganised, the question of which law applies where is answered by Articles 2 to 4 and by the reorganisation Act. The **Jammu and Kashmir Reorganisation Act, 2019** required exactly this exercise across dozens of central labour laws.

Second, who is protected. Some Fundamental Rights belong to **citizens only** - notably **Article 16**, equality of opportunity in public employment, which is the Article your own recruitment rests on. Others belong to **all persons**, including foreign nationals - and that includes **Article 14** and **Article 21**, which is why a migrant worker who is not an Indian citizen is still entitled to a fair Section 7A hearing. You cannot get that right without knowing the citizen-versus-person distinction taught in Section 3.

1. Session 1 - What "Territory" Legally Means



Start with the very first Article, because it contains a distinction the exam has used more than once.

1.1 Article 1, read slowly

Article 1(1): "India, that is Bharat, shall be a **Union of States**."

We met the choice of the word "Union" in Chapter F1.1 - Ambedkar's reasons were that the Union is **not the result of an agreement** among the States and that **no State has the right to secede**. Now look at what Article 1 goes on to say, because this is the part beginners skim.

Article 1(3) says the **territory of India** shall comprise:

- 1 The **territories of the States**
- 2 The **Union Territories** specified in the **First Schedule**
- 3 Such **other territories as may be acquired**

1.2 The distinction that earns marks - Union of India versus Territory of India

Read those two phrases again. They are **not** the same set, and the exam knows it.

Phrase	What it covers
Union of India	Only the States - the members of the federation, which share in the federal distribution of powers
Territory of India	States + Union Territories + any territories India may acquire . The whole area over which India exercises sovereignty

Two phrases, two different scopes - Territory of India is the WIDER term

IN PLAIN ENGLISH · WHY THE TWO DIFFER, IN ONE SENTENCE

A **Union Territory** is part of India, but it is **not a member of the federation** - it does not share in the Union-State division of powers in the way a State does; it is administered by the President through an Administrator.

So every State is part of the Union **and** the Territory. A Union Territory is part of the **Territory** but not of the **Union**. If a question offers you both phrases as options, it is testing precisely this, and the answer turns on whether Union Territories are meant to be included.

BEGINNER MISTAKE · THE 'OTHER TERRITORIES AS MAY BE ACQUIRED' CLAUSE

Beginners read this as dead wood. It is not. It is the constitutional basis on which India can **acquire** new territory - by cession, conquest, treaty or occupation - and have it become part of the territory of India automatically, without a constitutional amendment.

Note the asymmetry, because it is examined: **acquiring** territory needs no amendment, but **ceding** Indian territory to a foreign country **does** - see the Berubari case in Section 2.4. Acquisition is easy; giving away is hard. That asymmetry is deliberate.

1.3 The current count

As at now: **28 States and 8 Union Territories**.

Two recent changes produced those figures, and both are examinable:

- 1 The **Jammu and Kashmir Reorganisation Act, 2019**, effective **31 October 2019**, reorganised the former State of Jammu and Kashmir into **two Union Territories - Jammu and Kashmir** (with a legislature) and **Ladakh** (without one). This took States from 29 to **28** and Union Territories from 7 to **9**
- 2 With effect from **26 January 2020**, the Union Territories of **Dadra and Nagar Haveli** and **Daman and Diu** were **merged** into a single Union Territory. This took Union Territories from 9 to **8**

KNOW · THE UNION TERRITORIES, AND WHICH HAVE LEGISLATURES

The eight: **Delhi** (National Capital Territory), **Puducherry**, **Jammu and Kashmir**, **Ladakh**, **Chandigarh**, **Andaman and Nicobar Islands**, **Lakshadweep**, and **Dadra and Nagar Haveli and Daman and Diu**.

Three have a **legislature and a Council of Ministers**: **Delhi**, **Puducherry** and **Jammu and Kashmir**. **Ladakh** does not - and that contrast between the two halves of the former State is a favourite question.

Delhi is further special: it is a **National Capital Territory** under **Article 239AA**, inserted by the **69th Amendment, 1991**.

CHECK YOURSELF · SESSION 1

- 1 Quote Article 1(1). Why "Union" rather than "Federation"?
- 2 List the three components of the territory of India under Article 1(3)
- 3 Which is wider - Union of India or Territory of India? Explain the difference in one sentence
- 4 How many States and Union Territories are there now? Name the two changes that produced those numbers, with dates
- 5 Which Union Territories have a legislature? Which recently created one does not?

2. Session 2 - How States Are Made, Merged, Renamed and Lost ★★★★★

This is Articles 2, 3 and 4. The single most examined point is the difference between Article 2 and Article 3, and it is a difference of one word: existing.

2.1 Article 2 versus Article 3 - get this right and you have the topic

	Article 2	Article 3
What it does	Admits into the Union, or establishes, new States	Forms new States and alters areas, boundaries or names of existing States
Applies to	Territories not already part of India	Territory already part of India
Example	Admission of a foreign territory, or of Sikkim as a new State	Creating Telangana out of Andhra Pradesh; renaming Orissa as Odisha
Consent of the State	Not applicable - there is no Indian State involved yet	The State legislature's views must be sought, but are not binding

One word separates them - NEW territory versus EXISTING territory

Put crudely: **Article 2 deals with outsiders joining. Article 3 deals with rearranging the family already inside.** That sentence answers most questions on the pair.

2.2 The Article 3 procedure - four steps, and two traps

A Bill to form a new State or alter a State's area, boundary or name must follow this route:

- 1 It may be introduced in either House **only on the recommendation of the President**
- 2 Before recommending, if the Bill affects the **area, boundaries or name** of a State, the President must **refer it to the legislature of that State** for its **views**, within a period the President specifies
- 3 Parliament is **not bound** by those views. It may accept or reject them entirely. It need not even wait beyond the specified period
- 4 The Bill is then passed by a **simple majority**

COMMON UPSC TRAP · THE TWO TRAPS IN ARTICLE 3, BOTH REGULARLY EXAMINED

- 1 **The State's consent is NOT required - only its VIEWS.** Parliament can create, merge, shrink or rename a State against the express opposition of that State's own legislature. This is one of the strongest pieces of evidence for the "unitary bias" argument you met in Chapter F1.1, and it is a genuine contrast with a true federation like the USA, where State boundaries cannot be altered without State consent
- 2 **Only a SIMPLE majority is needed.** Not a special majority, and no State ratification. India's political map can be redrawn by an ordinary legislative majority. Candidates routinely assume such a fundamental change must need a special majority. It does not

2.3 Article 4 - the provision that explains why the map is not "the Constitution"

Article 4 says that a law made under Article 2 or Article 3 may make the consequential amendments to the **First Schedule** (list of States and Union Territories) and the **Fourth Schedule** (allocation of Rajya Sabha seats), and that **such a law shall not be deemed to be an amendment of the Constitution** under Article 368.

WHY THIS EXISTS · WHY ARTICLE 4 MATTERS MORE THAN IT LOOKS

Without Article 4 there would be a contradiction. The First Schedule is **part of the Constitution**. Creating a new State changes the First Schedule. So creating a State would be amending the Constitution, and would need a **special majority** under Article 368.

Article 4 cuts that knot by declaring such changes **not** to be constitutional amendments. That is what makes the **simple majority** in Article 3 workable.

So the three Articles fit together as a system: **Article 3** gives the power, **Article 4** removes the amendment obstacle, and the result is that **State boundaries in India are far easier to change than in any classical federation**. Understanding that link is worth more than memorising the three Articles separately.

2.4 Berubari - the limit on Article 3

A short but heavily examined case.

The question was whether India could **cede** a piece of its territory - part of Berubari Union - to Pakistan under an agreement, using the Article 3 power.

Berubari Union (1960): the Supreme Court held that **Parliament cannot cede Indian territory to a foreign State** by an ordinary law under Article 3. Ceding territory **diminishes the territory of India** under Article 1 and therefore requires a **constitutional amendment under Article 368**. Parliament responded with the **9th Constitutional Amendment Act, 1960**.

Two refinements you should carry, because the exam uses them as distractors:

- **Settling a boundary dispute** is different from ceding territory. Where the boundary is genuinely uncertain, resolving it is an **executive** act and needs **no** constitutional amendment
- **Acquiring** foreign territory needs no amendment either - Article 1(3)(c) already provides for it

MEMORY TECHNIQUE · THE ASYMMETRY, IN FOUR WORDS

Acquire freely, cede formally.

Gaining territory - Article 1(3)(c), no amendment. Losing territory - Article 368 amendment required. Merely clarifying an uncertain line - executive action, nothing required.

2.5 The reorganisation story - learn it as a narrative

The exam asks for firsts, for dates, and for which commission recommended what. The narrative makes them stick.

- 1 **Dhar Commission, 1948** examined reorganisation and **rejected** language as the basis, preferring administrative convenience
- 2 The **JVP Committee, 1949** - Jawaharlal Nehru, Vallabhbhai Patel and Pattabhi Sitaramayya - also **rejected** the linguistic principle
- 3 **Potti Sriramulu** died in 1952 after a hunger strike for a Telugu-speaking State. The resulting agitation forced the Government's hand
- 4 **Andhra State was created in 1953** - the **first State formed on a linguistic basis**
- 5 The **States Reorganisation Commission** was appointed in **1953** under **Fazl Ali**, with **K. M. Panikkar** and **H. N. Kunzru**. It reported in **1955** and largely **accepted** language as a basis, while rejecting the "one language one State" formula
- 6 The **States Reorganisation Act, 1956**, together with the **7th Constitutional Amendment Act, 1956**, redrew the map into **14 States and 6 Union Territories**, and abolished the old Part A, B, C and D classification

Year	State	Note
1960	Maharashtra and Gujarat	Bombay State bifurcated
1963	Nagaland	Carved out of Assam
1966	Haryana	Punjab reorganised; Chandigarh became a UT, and hill areas went to Himachal
1971	Himachal Pradesh	Elevated from Union Territory to State
1972	Manipur, Tripura, Meghalaya	Manipur and Tripura elevated from UTs
1975	Sikkim	Became a full State by the 36th Amendment . It had first become an associate State by the 35th Amendment, 1974
1987	Mizoram, Arunachal Pradesh, Goa	All three in the same year - a favourite question
2000	Chhattisgarh, Uttarakhand, Jharkhand	Three States in one year - from Madhya Pradesh, Uttar Pradesh and Bihar respectively
2014	Telangana	The 29th State , carved out of Andhra Pradesh, effective 2 June 2014

States created after 1956 - the dates most often asked

MEMORY TECHNIQUE · THREE CLUSTERS TO REMEMBER INSTEAD OF FIFTEEN DATES

- 1 **1987 = the three-in-one-year cluster** - Mizoram, Arunachal Pradesh, Goa
 - 2 **2000 = the other three-in-one-year cluster** - Chhattisgarh, Uttarakhand, Jharkhand. Pair each with its parent: MP, UP, Bihar
 - 3 **Sikkim is the odd one out** - it joined from **outside**, so it involved Articles 2 and amendment (35th then 36th), not an ordinary Article 3 carve-out
- And the two firsts: **Andhra 1953** first linguistic State; **Telangana 2014** most recent, the 29th.

CHECK YOURSELF · SESSION 2

- 1 State the difference between Article 2 and Article 3 in one sentence
- 2 Give the four steps of the Article 3 procedure. Is the State's consent required? What majority is needed?
- 3 What does Article 4 do, and why is it necessary for Article 3 to work?
- 4 What did Berubari decide? What is required to cede territory, and what is required merely to settle a disputed boundary?
- 5 Which commission first recommended reorganisation on a linguistic basis, who chaired it, and in what year did it report?
- 6 Name the three States created in 1987 and the three created in 2000, with their parent States for the second group

3. Session 3 - Citizenship: The Constitutional Provisions ★★★★★

Articles 5 to 11. First understand what citizenship legally does, because otherwise the provisions are just names and dates.

3.1 What citizenship actually is

A **citizen** is a full member of the State, owing it allegiance and entitled to the full set of civil and political rights it confers. An **alien** is a national of another State. Aliens are further divided into **friendly aliens** and **enemy aliens**, the latter having fewer protections - notably, **enemy aliens do not get the benefit of Article 22** on arrest and detention.

MUST MASTER · THE RIGHTS AVAILABLE ONLY TO CITIZENS - LEARN THIS LIST PRECISELY

This is the highest-value list in the chapter, because it is asked directly and because it matters to your own recruitment.

Available to citizens only:

- 1 **Article 15** - no discrimination on grounds of religion, race, caste, sex or place of birth
- 2 **Article 16** - equality of opportunity in **public employment**
- 3 **Article 19** - the six freedoms: speech and expression, assembly, association, movement, residence, profession
- 4 **Article 29 and Article 30** - cultural and educational rights of minorities
- 5 Plus, outside Part III: the right to **vote**, to **contest elections**, and to hold certain **offices** - President, Vice-President, judges of the Supreme Court and High Courts, Attorney-General, Governor

Available to ALL PERSONS, citizens and aliens alike:

- 1 **Article 14** - equality before law
- 2 **Article 20** - protection in respect of conviction for offences
- 3 **Article 21** - protection of life and personal liberty
- 4 **Article 21A** - right to education
- 5 **Article 22** - protection against arrest and detention, **except for enemy aliens**
- 6 **Articles 23 and 24** - prohibition of trafficking, forced labour and child labour
- 7 **Articles 25 to 28** - freedom of religion

WHY THIS EXISTS · WHY THIS LIST DECIDES A REAL QUESTION IN YOUR FUTURE JOB

Suppose a Nepali or Bangladeshi national is working in a covered establishment and a Section 7A inquiry concerns his wages.

He cannot claim **Article 16** - public employment is for citizens. He cannot claim **Article 19** freedoms. But he **can** claim **Article 14** equality before the law and **Article 21** life and personal liberty, and it is Articles 14 and 21 from which the courts derive the requirements of **natural justice** - notice, a hearing, and a reasoned order.

So the answer is that a non-citizen worker is fully entitled to a fair Section 7A hearing, and the reason lies in the second half of the list above. Also note that **"employee" under the EPF & MP Act is not defined by citizenship at all** - coverage follows employment in a covered establishment, not nationality. Statutory entitlement and constitutional right are two separate questions, and a good candidate keeps them separate.

3.2 Articles 5 to 11 - what each one does

These Articles deal with citizenship **at the commencement** of the Constitution, on 26 January 1950. They were a one-time settlement for the Partition generation - which is why they are historical in character.

Article	What it provides
5	Citizenship at commencement for a person domiciled in India who was born in India, or either of whose parents was born in India, or who had been ordinarily resident in India for not less than five years immediately before commencement
6	Citizenship of those who migrated to India from Pakistan . The cut-off 19 July 1948 divides the two sub-clauses: those who came before it needed only residence since migration; those who came on or after it had to be registered
7	Those who migrated from India to Pakistan after 1 March 1947 cease to be citizens - with a saving for those who returned under a permit for resettlement
8	Citizenship of persons of Indian origin residing outside India , by registration with an Indian diplomatic mission
9	A person who has voluntarily acquired the citizenship of a foreign State shall NOT be a citizen of India
10	Every person who is a citizen continues to be one, subject to any law made by Parliament
11	Parliament has the power to make any provision with respect to the acquisition and termination of citizenship and all other matters relating to it

MUST MASTER · THE THREE POINTS FROM ARTICLES 5 TO 11 THAT ARE ACTUALLY ASKED

- Article 9 - India does NOT permit dual citizenship.** Voluntarily taking the citizenship of another country means you cease to be an Indian citizen. This is the basis of the whole OCI arrangement discussed in Section 4
- Article 11 - the Constitution deliberately left citizenship law to Parliament.** This is why the detailed rules are in the **Citizenship Act, 1955** and not in the Constitution, and why they can be changed by ordinary law. It is also why the CAA of 2019 amended an Act rather than the Constitution
- Single citizenship.** India has **one** citizenship for the whole country, unlike the USA where a person is a citizen both of the Union and of a State. There is no "citizen of Kerala"

IN PLAIN ENGLISH · WHY SINGLE CITIZENSHIP WAS CHOSEN

The framers had just watched Partition. A separate State citizenship would have allowed States to discriminate against Indians from other States in employment, residence and access to services - and would have given territorial identity a legal edge at exactly the moment national unity was most fragile.

So India adopted **single citizenship** with a **common domicile**, so that every citizen carries identical rights everywhere. The limited exceptions that exist - such as special provisions for some States under Article 371 and its variants, and the employment preferences permitted in a few places - are exceptions, not a second citizenship.

CHECK YOURSELF · SESSION 3

- 1 Define citizen, alien, friendly alien and enemy alien. Which right does an enemy alien lose?
- 2 List the five Articles of Part III available to citizens only
- 3 Name four rights available to aliens as well as citizens. Which two of them supply natural justice?
- 4 What does Article 9 establish about dual citizenship?
- 5 What does Article 11 do, and what is the practical consequence of it?
- 6 Why did India choose single citizenship?

4. Session 4 - The Citizenship Act, 1955 ★★★★★

Because Article 11 handed the subject to Parliament, the operative law is an ordinary Act - and this is where the date-based rules live. Beginners find this section fiddly. The trick is to see that every rule is a response to a policy worry.

4.1 The five modes of acquisition

- 1 **By birth**
- 2 **By descent**
- 3 **By registration**
- 4 **By naturalisation**
- 5 **By incorporation of territory**

MEMORY TECHNIQUE · FIVE MODES - B, D, R, N, I

Birth, Descent, Registration, Naturalisation, Incorporation. Remember them as answering five different questions: *born here* (birth), *born to Indians elsewhere* (descent), *already connected, wants to formalise* (registration), *no prior connection, earns it over time* (naturalisation), *the territory itself joined India* (incorporation).

4.2 Citizenship by birth - the three date bands

This is the most examined part of the Act. Note how the rule **tightens** at each stage.

Born in India	Citizen by birth if
On or after 26 Jan 1950 but before 1 July 1987	Automatically a citizen - the nationality of the parents is irrelevant
On or after 1 July 1987 but before 3 Dec 2004	Either parent was a citizen of India at the time of birth
On or after 3 Dec 2004	Both parents are citizens, OR one parent is a citizen and the other is not an illegal migrant at the time of birth

Born IN India - the rule depends on WHEN

WHY THIS EXISTS · READ THE TREND, DO NOT MEMORISE THREE UNRELATED RULES

The three bands are one policy moving in one direction: **from pure place of birth towards descent.**

- 1 **1950 to 1987** - pure *jus soli*, the "law of the soil". Born here, therefore Indian
- 2 **1987** - a parental link is introduced. Concern about immigration, particularly in the north-east, drove this
- 3 **2004** - the link is tightened further, and the phrase "**not an illegal migrant**" appears for the first time

Learn the **direction of travel** and the two cut-off dates - **1 July 1987** and **3 December 2004** - and you can reconstruct all three rules. That is far more reliable than memorising three sentences that look alike.

4.3 Citizenship by descent - born outside India

The same tightening pattern, with its own dates.

- 1 Born outside India on or after **26 January 1950** but before **10 December 1992** - a citizen by descent if the **father** was a citizen at the time of birth
- 2 Born on or after **10 December 1992** - a citizen if **either parent** was a citizen at the time of birth
- 3 Born on or after **3 December 2004** - **not** a citizen by descent **unless** the birth is **registered** at an Indian consulate within **one year** of birth, or later with the Central Government's permission

COMMON UPSC TRAP · THE 1992 CHANGE IS A GENDER-EQUALITY POINT, AND IT IS ASKED

Before **10 December 1992** only the **father's** citizenship counted for descent. From that date, **either parent** suffices. If a question gives you a person born abroad in the 1980s to an Indian mother and a foreign father, the answer under the law as it then stood is that the person was **not** a citizen by descent. Candidates get this wrong because they apply today's rule to an earlier date.

4.4 Registration, naturalisation and incorporation

By registration - for persons who already have a qualifying connection with India. The categories include a **person of Indian origin** who is ordinarily resident in India for **seven years**, and a person **married to an Indian citizen** who is ordinarily resident for **seven years**.

By naturalisation - for a person with no such prior connection, who must satisfy the Central Government of, among other conditions, residence or Government service in India for **twelve years** in aggregate. The applicant must take an **oath of allegiance**, and the Government may waive conditions for a person who has rendered **distinguished service** to science, philosophy, art, literature, world peace or human progress.

By incorporation of territory - if a territory becomes part of India, the Government specifies which of its people become Indian citizens.

4.5 The three modes of loss

Mode	How it happens
Renunciation	Voluntary. A citizen of full age and capacity declares renunciation. Note that the person's minor children also lose citizenship, but may resume it on attaining majority
Termination	Automatic , by operation of law, when a citizen voluntarily acquires the citizenship of another country. This is Article 9 given statutory effect
Deprivation	Compulsory , by an order of the Central Government , on grounds such as obtaining citizenship by fraud , showing disloyalty to the Constitution, unlawfully trading or communicating with an enemy during war, being imprisoned for two years within five years of registration or naturalisation, or ordinary residence outside India for seven continuous years

BEGINNER MISTAKE · RENUNCIATION, TERMINATION, DEPRIVATION - THE BEGINNER'S CONFUSION

Sort them by **who acts**.

- 1 **Renunciation** - **you** act. You choose to give it up
- 2 **Termination** - **nobody** acts. It happens automatically the moment you take another citizenship
- 3 **Deprivation** - **the Government** acts, against you, on specified grounds

Note also that deprivation applies most broadly to those who acquired citizenship by **registration or naturalisation**, which is why the two-year imprisonment ground is tied to those modes.

4.6 Overseas Citizen of India, and the CAA

OCI is the scheme under which persons of Indian origin abroad, and their spouses, can register for a lifelong visa and specified economic, financial and educational parity with non-resident Indians.

MUST MASTER · OCI IS NOT DUAL CITIZENSHIP - AND THIS IS THE EXAM'S FAVOURITE POINT HERE

An OCI cardholder does **not** get:

- The right to **vote**
- The right to hold **constitutional office** - President, Vice-President, judge, and so on
- The right to hold ordinary **public employment** under the Government
- The right to acquire **agricultural or plantation** property

Because **Article 9** forbids dual citizenship, OCI had to be designed as an **immigration and residence status**, not a second citizenship. The older **PIO** card scheme was **merged into OCI** in **2015**.

The Citizenship (Amendment) Act, 2019 (CAA) amended the 1955 Act. Its core provision, stated neutrally:

- 1 It applies to persons belonging to the **Hindu, Sikh, Buddhist, Jain, Parsi and Christian** communities
- 2 from **Afghanistan, Bangladesh and Pakistan**
- 3 who entered India **on or before 31 December 2014**
- 4 Such persons are **not to be treated as illegal migrants** for the purposes of the Act, and the qualifying residence period for **naturalisation** is reduced from eleven years to **five years**

NOTE · HOW TO HANDLE THE CAA IN AN EXAM OR AN INTERVIEW

Learn the **four parameters** - the six communities, the three countries, the cut-off date of **31 December 2014**, and the reduction to **five years**. Those are the facts, and they are what a question can test.

If it arises in an interview, describe the provision accurately and neutrally, note that it was challenged in the Supreme Court, and stop. It is a live political controversy, and the board is assessing whether you can state a contested provision precisely without editorialising - which is, incidentally, exactly the skill a quasi-judicial officer needs.

CHECK YOURSELF · SESSION 4

- 1 Name the five modes of acquisition and the three modes of loss
- 2 Give the three date bands for citizenship by birth, and state the rule in each
- 3 What changed on 10 December 1992 for citizenship by descent?
- 4 Distinguish renunciation, termination and deprivation by asking "who acts?"
- 5 Give three things an OCI cardholder cannot do, and explain in one sentence why OCI could not be made dual citizenship
- 6 State the four parameters of the CAA 2019

5. Graded Practice - 40 Questions ★★★★★

Level 1 is recall. Level 2 tests whether you understand the structure. Level 3 is set at true RT difficulty, using the paper's real formats.

5.1 Level 1 - Recognition

Q. 1. Under Article 1, India is described as

- (a) a Federation of States (b) a Union of States (c) a Confederation (d) a Federal Republic of States

Q. 2. The territory of India under Article 1(3) comprises

- (a) the territories of the States only (b) the States and the Union Territories only (c) the States, the Union Territories, and such other territories as may be acquired (d) the States, the Union Territories and the territorial waters

Q. 3. Which Article empowers Parliament to admit or establish new States?

- (a) Article 1 (b) Article 2 (c) Article 3 (d) Article 4

Q. 4. A Bill under Article 3 can be introduced in Parliament only on the recommendation of

- (a) the Speaker (b) the Governor of the State concerned (c) the President (d) the Inter-State Council

Q. 5. A law made under Article 2 or 3 which amends the First and Fourth Schedules

- (a) is deemed to be an amendment of the Constitution under Article 368 (b) is not deemed to be an amendment of the Constitution (c) requires ratification by half the States (d) requires a special majority

Q. 6. The first State to be created on a linguistic basis was

- (a) Kerala (b) Tamil Nadu (c) Andhra (d) Karnataka

Q. 7. The States Reorganisation Commission of 1953 was chaired by

- (a) K. M. Panikkar (b) H. N. Kunzru (c) Fazl Ali (d) B. N. Rau

Q. 8. Telangana, the 29th State, was created in

- (a) 2000 (b) 2011 (c) 2014 (d) 2019

Q. 9. How many States and Union Territories does India presently have?

- (a) 29 States and 7 Union Territories (b) 28 States and 8 Union Territories (c) 28 States and 9 Union Territories (d) 29 States and 8 Union Territories

Q. 10. Which Article provides that a person who voluntarily acquires the citizenship of a foreign State shall not be a citizen of India?

- (a) Article 5 (b) Article 7 (c) Article 9 (d) Article 11

Q. 11. The power to make provision with respect to acquisition and termination of citizenship rests with

- (a) the President (b) Parliament (c) the Supreme Court (d) the Ministry of Home Affairs by executive order

Q. 12. Which one of the following rights is available to citizens only?

- (a) Article 14 (b) Article 16 (c) Article 21 (d) Article 25

Q. 13. The Citizenship Act was enacted in

(a) 1950 (b) 1951 (c) 1955 (d) 1962

Q. 14. How many modes of acquiring citizenship does the Citizenship Act, 1955 provide?

(a) Three (b) Four (c) Five (d) Six

Q. 15. The PIO card scheme was merged into the OCI scheme in

(a) 2005 (b) 2011 (c) 2015 (d) 2019

5.2 Level 2 - Understanding

Q. 16. Which of the following correctly states the relationship between the two expressions?

(a) Union of India is wider than Territory of India (b) Territory of India is wider than Union of India, since it includes Union Territories and acquired territories (c) The two expressions are identical in scope (d) Union of India includes acquired territories but Territory of India does not

Q. 17. Under Article 3, the views of the legislature of the State concerned are

(a) binding on Parliament (b) binding only if expressed within the specified period (c) to be sought but are not binding on Parliament (d) not required at all

Q. 18. A Bill to rename a State and alter its boundaries requires

(a) a special majority in both Houses (b) a special majority plus ratification by half the States (c) a simple majority in both Houses (d) the consent of the State legislature concerned

Q. 19. Cession of Indian territory to a foreign State requires

(a) an ordinary law under Article 3 (b) a constitutional amendment under Article 368 (c) executive action alone (d) a resolution of the Inter-State Council

Q. 20. Settlement of a genuine boundary dispute with a neighbouring country requires

(a) a constitutional amendment (b) a law under Article 3 (c) executive action, no amendment being necessary (d) ratification by the affected State

Q. 21. Which one of the following is not a Union Territory with a legislature?

(a) Delhi (b) Puducherry (c) Jammu and Kashmir (d) Ladakh

Q. 22. A person born in India in 1985 to two foreign nationals, neither of whom was an Indian citizen, is

(a) not a citizen by birth (b) a citizen by birth, since the nationality of parents was irrelevant before 1 July 1987 (c) a citizen only if the parents were not illegal migrants (d) a citizen by descent

Q. 23. A person born in India in 2010 is a citizen by birth if

(a) either parent is a citizen (b) both parents are citizens, or one is a citizen and the other is not an illegal migrant (c) the person is born in India, regardless of parentage (d) the birth is registered within one year

Q. 24. A person born outside India in 1988 to an Indian mother and a foreign father was

(a) a citizen by descent, since either parent sufficed (b) not a citizen by descent, since only the father's citizenship counted before 10 December 1992 (c) a citizen by birth (d) a citizen by registration automatically

Q. 25. Citizenship is terminated when a person

(a) declares renunciation before the prescribed authority (b) voluntarily acquires the citizenship of another country (c) is deprived of it by the Central Government for fraud (d) resides outside India for two years

Q. 26. Which mode of loss of citizenship is a compulsory act of the Central Government?

(a) Renunciation (b) Termination (c) Deprivation (d) Incorporation

Q. 27. Which one of the following can an OCI cardholder do?

(a) Vote in a general election (b) Hold the office of President (c) Acquire agricultural land (d) Enter India on a lifelong visa

Q. 28. Naturalisation under the Citizenship Act, 1955 ordinarily requires residence or Government service in India for

(a) five years (b) seven years (c) twelve years (d) fourteen years

Q. 29. Sikkim became a full State of the Indian Union by which amendment?

(a) 35th Amendment, 1974 (b) 36th Amendment, 1975 (c) 7th Amendment, 1956 (d) 69th Amendment, 1991

Q. 30. An enemy alien in India is not entitled to the protection of

(a) Article 14 (b) Article 20 (c) Article 21 (d) Article 22

5.3 Level 3 - Recruitment Test standard**Q. 31. Which one of the following statements is not correct?**

(a) Article 2 relates to territories which are not part of India, while Article 3 relates to territories already part of India (b) Under Article 3, Parliament requires the consent of the State legislature concerned (c) A law under Article 3 is passed by a simple majority (d) Article 4 provides that consequential amendments to the First Schedule are not amendments of the Constitution

Q. 32. Consider the following statements:

- 1 Acquisition of foreign territory by India requires a constitutional amendment under Article 368.
- 2 Cession of Indian territory to a foreign State requires a constitutional amendment under Article 368.

Which of the above statements is or are correct?

(a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

Q. 33. Match List-I with List-II and select the correct answer using the code below:

List-I (Year)	List-II (State created)
A. 1963	1. Haryana
B. 1966	2. Nagaland
C. 1975	3. Telangana
D. 2014	4. Sikkim

(a) A-2 B-1 C-4 D-3 (b) A-1 B-2 C-4 D-3 (c) A-2 B-1 C-3 D-4 (d) A-4 B-1 C-2 D-3

Q. 34. Which of the following were created as States in the same year?

- 1 Mizoram
- 2 Arunachal Pradesh
- 3 Goa
- 4 Meghalaya

(a) 1, 2 and 3 only (b) 1, 2 and 4 only (c) 2, 3 and 4 only (d) 1, 2, 3 and 4

Q. 35. Consider the following statements about single citizenship in India:

- 1 India provides for single citizenship, so there is no separate citizenship of a State.
- 2 The United States provides for dual citizenship of the Union and of the State.
- 3 Single citizenship was adopted to prevent States from discriminating against residents of other States.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 36. Which one of the following pairs is not correctly matched?

(a) Article 5 - citizenship at the commencement of the Constitution (b) Article 6 - citizenship of persons who migrated from Pakistan to India (c) Article 7 - citizenship of persons of Indian origin residing outside India (d) Article 11 - Parliament's power to regulate citizenship

Q. 37. Consider the following statements regarding the Citizenship (Amendment) Act, 2019:

- 1 It applies to migrants from Afghanistan, Bangladesh and Pakistan.
- 2 The cut-off date for entry into India is 31 December 2014.
- 3 It reduces the qualifying period of residence for naturalisation for the specified persons to five years.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 38. A foreign national, not an Indian citizen, is an employee in an establishment covered by the EPF & MP Act, 1952, and a Section 7A inquiry is initiated concerning his wages. Which one of the following is correct?

(a) He cannot claim any constitutional protection, being an alien (b) He is entitled to a fair hearing, since Articles 14 and 21 are available to all persons, and his statutory coverage does not depend on citizenship (c) He is entitled to a hearing only because of Article 16 (d) He is outside the Act, since coverage requires Indian citizenship

Q. 39. Which of the following statements is or are correct regarding the reorganisation of Jammu and Kashmir in 2019?

- 1 The former State was reorganised into two Union Territories.
- 2 Both new Union Territories were given legislatures.
- 3 The reorganisation reduced the number of States from 29 to 28.

(a) 1 and 3 only (b) 1 and 2 only (c) 2 and 3 only (d) 1, 2 and 3

Q. 40. Arrange the following in correct chronological sequence:

- 1 The States Reorganisation Act
- 2 Creation of Andhra State
- 3 Report of the States Reorganisation Commission
- 4 The JVP Committee

(a) 4, 2, 3, 1 (b) 2, 4, 3, 1 (c) 4, 3, 2, 1 (d) 2, 3, 4, 1

6. Answers and Explanations

6.1 Level 1

Q	Ans	Explanation
1	b	Union of States - deliberately not "Federation". Ambedkar's reasons: no agreement among States, no right to secede
2	c	All three limbs, including "such other territories as may be acquired". Territorial waters are not a separate limb in Article 1(3)
3	b	Article 2 - new States, from territory not already part of India. Article 3 deals with existing territory
4	c	The President's recommendation is a precondition
5	b	Article 4 expressly says such a law is not an amendment under Article 368. This is what allows the simple majority
6	c	Andhra , 1953, after the death of Potti Sriramulu
7	c	Fazl Ali , with K. M. Panikkar and H. N. Kunzru as members. Report 1955
8	c	2014 , effective 2 June, the 29th State
9	b	28 States and 8 Union Territories , after the J&K reorganisation of 2019 and the DNH-Daman and Diu merger of 2020
10	c	Article 9 - the constitutional bar on dual citizenship
11	b	Parliament , under Article 11 . This is why the operative law is the Citizenship Act, 1955
12	b	Article 16 , public employment. Articles 14, 21 and 25 are available to all persons
13	c	1955
14	c	Five - birth, descent, registration, naturalisation, incorporation of territory
15	c	2015

6.2 Level 2

Q	Ans	Explanation
16	b	Territory of India is wider. Union of India means the States only; Territory adds Union Territories and acquired territories
17	c	Views must be sought but are not binding , and Parliament need not even wait beyond the specified period. Contrast a true federation, where State consent is needed
18	c	Simple majority. Candidates over-estimate this constantly. Article 4 is what makes it possible
19	b	Article 368 amendment - <i>Berubari Union</i> (1960), which produced the 9th Amendment, 1960
20	c	Executive action. Settling an uncertain boundary is not the same as ceding territory. A favourite distractor pairing with the previous question
21	d	Ladakh has no legislature. Delhi, Puducherry and Jammu and Kashmir do. The contrast between the two halves of the former State is the point
22	b	Born before 1 July 1987 , so pure jus soli applied - parentage was irrelevant

Q	Ans	Explanation
23	b	Born after 3 December 2004 , so both parents citizens, or one citizen and the other not an illegal migrant
24	b	Before 10 December 1992 only the father's citizenship counted for descent. Applying today's rule to 1988 is the classic error
25	b	Termination is automatic on voluntarily acquiring another citizenship. (a) is renunciation, (c) is deprivation
26	c	Deprivation - a compulsory order of the Central Government on specified grounds
27	d	A lifelong visa is the core OCI benefit. Voting, constitutional office and agricultural land are all excluded, because OCI is not dual citizenship
28	c	Twelve years of residence or Government service in aggregate. Seven years relates to registration categories - a deliberate distractor
29	b	36th Amendment, 1975 made it a full State. The 35th , 1974, had made it an associate State first
30	d	Article 22 . Enemy aliens lose the protections on arrest and detention, but retain Articles 14, 20 and 21

6.3 Level 3

Q	Ans	Explanation
31	b	Parliament needs only the State legislature's views , never its consent . The other three statements are all correct - which is what makes (b) the "not correct" answer
32	b	Only statement 2. Acquisition needs no amendment - Article 1(3)(c) already provides for it. Cession does, per <i>Berubari</i> . Remember: acquire freely, cede formally
33	a	A-2 1963 Nagaland; B-1 1966 Haryana; C-4 1975 Sikkim; D-3 2014 Telangana
34	a	Mizoram, Arunachal Pradesh and Goa were all created in 1987 . Meghalaya was 1972 , with Manipur and Tripura
35	d	All three correct . India single, the USA dual, and the reason was to prevent inter-State discrimination in the fragile post-Partition period
36	c	Article 7 deals with persons who migrated from India to Pakistan after 1 March 1947 and thereby ceased to be citizens. Persons of Indian origin residing outside India are Article 8
37	d	All three correct - the three countries, the cut-off of 31 December 2014 , and the reduction to five years . The six communities are the fourth parameter
38	b	Articles 14 and 21 apply to all persons , and natural justice is derived from them, so a fair hearing is required. Separately, " employee " under the EPF & MP Act does not turn on citizenship - coverage follows employment in a covered establishment. (c) is wrong because Article 16 concerns public employment and is for citizens only
39	a	1 and 3 only . Statement 2 is wrong - Ladakh was given no legislature ; only Jammu and Kashmir was
40	a	4, 2, 3, 1 - JVP Committee 1949 , Andhra State 1953 , SRC report 1955 , States Reorganisation Act 1956 . Note the Commission was appointed in 1953 but reported in 1955, and the question asks about the report

7. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F1.2 - READ BEFORE EVERY POLITY SESSION

ARTICLE 1 "India, that is Bharat, shall be a **Union of States**" - no agreement, no secession · territory = **States + UTs + acquired territories**

THE WIDER TERM Territory of India (States + UTs + acquired) is **wider than Union of India** (States only)

ARTICLE 2 vs 3 **2 = NEW** territory from outside India · **3 = EXISTING** territory rearranged. *Outsiders joining versus rearranging the family inside*

ARTICLE 3 PROCEDURE President's **recommendation** → refer to State legislature for **VIEWS ONLY, not binding** → **SIMPLE majority**. No State consent, no special majority

ARTICLE 4 consequential changes to the **1st and 4th Schedules** are **NOT** amendments under Art 368 - this is what permits the simple majority

BERUBARI 1960 cannot **cede** territory under Art 3; needs **Art 368** amendment → **9th Amendment 1960**. But **acquiring** needs nothing, and settling a **disputed boundary** is **executive**. *Acquire freely, cede formally*

REORGANISATION Dhar **1948** rejected language · JVP **1949** rejected language · **Potti Sriramulu** dies **1952** · **Andhra 1953 first linguistic State** · **SRC 1953 under Fazl Ali** (Panikkar, Kunzru), reported **1955** · **States Reorganisation Act 1956 + 7th Amendment = 14 States, 6 UTs**
CLUSTERS 1987 = Mizoram, Arunachal, Goa · 2000 = Chhattisgarh (MP), Uttarakhand (UP), Jharkhand (Bihar) · 1972 = Manipur, Tripura, Meghalaya · Sikkim 35th 1974 associate → 36th 1975 full · Telangana 2014, 29th

NOW 28 States, 8 UTs · J&K Reorganisation **31 Oct 2019** → two UTs, **only J&K has a legislature, Ladakh does not** · DNH + Daman and Diu merged **26 Jan 2020**

UTs WITH LEGISLATURE Delhi (Art 239AA, 69th Amdt 1991), **Puducherry, Jammu and Kashmir**
CITIZENS ONLY Art 15, 16, 19, 29, 30 + vote, contest, high office. **ALL PERSONS** Art 14, 20, 21, 21A, 22, 23, 24, 25-28 · **enemy aliens lose Art 22**

ARTICLES 5-11 5 at commencement (born / parent born / 5 yrs resident) · **6 migrated from Pakistan**, cut-off **19 July 1948** · **7 migrated to Pakistan** after **1 Mar 1947** · **8 Indian origin abroad**, by registration · **9 NO DUAL CITIZENSHIP** · **11 Parliament's power** → Citizenship Act **1955**

BIRTH - TIGHTENING TREND before **1 Jul 1987** parentage irrelevant · **1987-2004 either** parent citizen · after **3 Dec 2004 both**, or one + other **not an illegal migrant**

DESCENT before **10 Dec 1992 father** only · after, **either parent** · after **3 Dec 2004** must **register** within **1 year**

FIVE MODES Birth Descent Registration Naturalisation Incorporation · registration **7 years** · naturalisation **12 years**

THREE LOSSES - WHO ACTS Renunciation you · Termination nobody, automatic · **Deprivation** the Central Government

OCI NOT dual citizenship · no vote, no constitutional office, no public employment, no agricultural land · lifelong visa · **PIO merged into OCI 2015**

CAA 2019 6 communities · **Afghanistan, Bangladesh, Pakistan** · entry on or before **31 Dec 2014** · naturalisation **5 years**

8. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F1.2 - PUT THIS WHERE YOU CAN SEE IT**ART 2 = NEW from outside · ART 3 = EXISTING rearranged****ART 3** President recommends · State gives **VIEWS ONLY · SIMPLE majority · Art 4** says it is not an amendment**BERUBARI** cede = **Art 368** · acquire = nothing · dispute = **executive****FIRSTS Andhra 1953** first linguistic · **Fazl Ali SRC 1953**, report 1955 · **Act 1956** = 14 States 6 UTs**1987** Mizoram Arunachal Goa · **2000** Chhattisgarh Uttarakhand Jharkhand · **2014** Telangana 29th**NOW 28 + 8 · Ladakh has NO legislature****CITIZENS ONLY 15, 16, 19, 29, 30 · ALL PERSONS 14, 20, 21, 22 · enemy alien loses 22****ART 9 NO DUAL CITIZENSHIP** → that is why **OCI is only a visa status****BIRTH DATES 1 Jul 1987 · 3 Dec 2004 · DESCENT DATE 10 Dec 1992****LOSS - WHO ACTS** you = renounce · nobody = terminate · Government = deprive**CAA** 6 communities · 3 countries · **31 Dec 2014 · 5 years****THE JOB LINK** a **non-citizen** worker in a covered establishment still gets a fair **Section 7A** hearing, because **Art 14 and 21 apply to all persons** and coverage under the EPF & MP Act **does not depend on citizenship****ACTION · NEXT IN THE FOUNDATION TRACK****Chapter F1.3 - Fundamental Rights.** The longest and most important Foundation chapter in Module 1. It contains **Article 12**, the definition of "State", and the holding that **EPFO is "State"** - the single most directly job-relevant point in the whole of polity. It also contains Articles 14, 19, 21 and 32, which together generate more questions than any other part of the Constitution.Before moving on, make sure you can state: **Article 2 versus Article 3**, the **Article 3 procedure** including the majority, the **Berubari** asymmetry, the **citizens-only list**, and the **two birth cut-off dates**.